CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

Date: -

This Non-Disclosure Agreement ("Agreement") is made and entered into on this between:

1. **Akiyam Solutions Private Limited**, a company incorporated under the laws of India, having its registered office at **SF-16, Dwarkesh High View, Near Susen - Tarsali Ring Rd, NH No. 8, Tarsali, Vadodara, Gujarat 390009** (hereinafter referred to as the "Company", which term shall include its successors, affiliates, or assigns); and

2. **[Full Name] Sunasaa ImtiyajHussain S.**_____, an individual residing at **[Address] Meta, Vadgam, B.K, Gujarat, India** _____ _____, (hereinafter referred to as the "Recipient" or "Employee/Intern", which term shall include the Employee's/Intern's representatives, executors, administrators, and permitted assigns).

WHEREAS, the Company has engaged the Recipient either as an **employee** or an **intern** by the terms and conditions stipulated in their respective employment offer or internship agreement;

WHEREAS, the Recipient, during their engagement with the Company, will have access to **Confidential Information** and other proprietary data related to the Company's business and operations;

NOW, THEREFORE, in consideration of the mutual promises and covenants contained herein, the parties agree as follows:

1. Definition of Confidential Information

1.1 Confidential Information

For the purposes of this Agreement, "Confidential Information" shall include, but not be limited to:

- **Business Plans**: Current and future business strategies, market research, financial information, product plans, sales forecasts, and business proposals.
- **Technical Information**: Software code, algorithms, designs, models, diagrams, prototypes, databases, network configurations, intellectual property, and know-how.
- **Marketing and Sales**: Marketing strategies, promotional materials, customer and client data, pricing strategies, and leads.
- **Employee, Vendor, and Customer Data**: Internal data about employees, contractors, clients, customers, partners, and suppliers.
- **Proprietary Information**: Any data, documents, materials, processes, or communications deemed confidential by the Company, whether oral, written, or in electronic form.
- **Other**: Any other information marked or treated as confidential by the Company, whether or not it is publicly disclosed or available.

1.2 Exclusions from Confidential Information

Confidential Information does not include any information that:

- Is **publicly available** at the time of disclosure or becomes publicly available without breach of this Agreement.
- Was known to the Recipient prior to disclosure and was not acquired from the Company under any confidentiality obligation.
- Is disclosed to the Recipient by a third party who is not bound by confidentiality obligations and has the right to disclose such information.
- Is independently developed by the Recipient without reference to or reliance on the Company's Confidential Information.

2. Obligations of the Recipient

2.1 Confidentiality

The Recipient agrees to:

- **Maintain Confidentiality**: The Recipient shall keep all Confidential Information in strict confidence and shall not disclose it to any third party without the prior written consent of the Company.
- **Use Confidential Information Only for Approved Purposes**: The Recipient shall use the Confidential Information solely for the purpose of performing their duties under their employment or internship agreement and not for any other personal, professional, or commercial purposes.

2.2 Security Measures

The Recipient agrees to:

- **Protect Confidential Information**: The Recipient shall take all necessary steps to ensure that Confidential Information is stored securely, both physically and electronically.
- **Limit Access**: Access to Confidential Information will be restricted to authorized persons only. The Recipient shall not permit unauthorized individuals to view or handle Confidential Information.
- **Ensure Compliance**: The Recipient shall comply with all of the Company's internal policies regarding the use, storage, and sharing of Confidential Information.

2.3 Non-Disclosure

- The Recipient shall not, under any circumstances, **disclose, copy, reproduce, or transmit** any Confidential Information without the Company's prior written consent. This includes information shared verbally, in writing, or through digital means.

2.4 Return of Materials

Upon the termination of employment or internship, or upon the Company's request at any time, the Recipient agrees to return or destroy all Confidential Information in their possession, including copies of any documents, files, or electronic data. The Recipient shall provide a certification of destruction or return if required.

3. Intellectual Property

3.1 Ownership of Work Product

The Recipient acknowledges and agrees that:

- All inventions, designs, developments, ideas, processes, works of authorship, and other creations (whether or not patentable, copyrightable, or otherwise protectable) that are conceived, created, or developed during the term of their engagement, related to the Company's business or use of Confidential Information, shall be the exclusive property of the Company.
- The Recipient assigns to the Company all rights, title, and interest in such creations, and agrees to assist the Company in securing intellectual property protection (such as patents, copyrights, etc.) as needed.

3.2 Invention Disclosure

The Recipient agrees to promptly disclose in writing to the Company any inventions or discoveries made during the engagement that are related to the Company's business. Such disclosures shall be the property of the Company.

3.3 Assignment of Rights

The Recipient agrees to assign any rights in the intellectual property, inventions, designs, or Work Products made during their engagement to the Company and shall sign any documents or take any further action necessary to perfect such assignments.

4. Non-Competition and Non-Solicitation

4.1 Non-Competition

During the term of engagement and for a period of **[Insert Duration, e.g., 12 months]** following the termination of their employment or internship, the Recipient agrees not to:

- Engage in any business or profession that competes directly with the Company's business.
- Work for or provide services to any company, firm, or individual that competes with the Company.

4.2 Non-Solicitation

During the term of engagement following termination, the Recipient agrees not to:

- Solicit, recruit, or hire any employees, contractors, or agents of the Company.
- Solicit or attempt to solicit business or clients away from the Company.

5. Legal Compliance and Data Protection

5.1 Compliance with Indian Laws

The Recipient agrees to comply with all applicable laws, including:

- The **Information Technology Act, 2000**, regarding the protection of electronic data and confidentiality.
- The **Indian Contract Act, 1872**, the **Patents Act, 1970**, and the **Copyright Act, 1957**, concerning intellectual property and proprietary information.

5.2 Data Protection

The Recipient agrees to comply with the data protection and privacy laws applicable under Indian legislation, including any amendments or regulations, regarding the collection, use, and transfer of personal data and sensitive data.

5.3 Confidentiality of Personal Data

The Recipient agrees not to disclose, process, or share any personal data or sensitive information of employees, clients, or customers of the Company, except for the purpose of fulfilling their duties and responsibilities.

6. Term of Agreement and Survival of Obligations

6.1 Duration

This Agreement shall remain in effect during the term of the Recipient's engagement with the Company, whether as an employee or an intern.

6.2 Survival of Obligations

The Recipient's obligations regarding confidentiality, intellectual property, and non-competition shall survive the termination of this Agreement after the end of the engagement, or as required by applicable law.

7. Remedies for Breach

7.1 Injunctive Relief

The Recipient acknowledges that a breach of this Agreement may cause irreparable harm to the Company, and the Company shall be entitled to seek immediate injunctive relief, including but not limited to a temporary restraining order or injunction, in addition to other legal remedies available under Indian law.

7.2 Indemnification

The Recipient agrees to indemnify and hold harmless the Company from any loss, damage, or expenses incurred as a result of a breach of this Agreement.

8. Dispute Resolution and Governing Law

8.1 **Dispute Resolution**
Any disputes arising under or in connection with this Agreement shall be resolved through arbitration, as per the provisions of the **Arbitration and Conciliation Act, 1996**. The arbitration shall take place in **Vadodara, Gujarat**, and the language of arbitration shall be **English**.

8.2 **Governing Law**
This Agreement shall be governed by and construed by the laws of India.

9. Miscellaneous Provisions

9.1 **Severability**
If any provision of this Agreement is determined to be invalid, illegal, or unenforceable, the remaining provisions shall remain in full force and effect, and the unenforceable provision shall be modified to the extent necessary to make it enforceable.

9.2 **Entire Agreement**
This Agreement constitutes the entire understanding between the parties concerning the subject matter and supersedes all prior agreements, whether written or oral.

9.3 **Amendments**
No amendment to this Agreement shall be valid unless made in writing and signed by both parties.

Acknowledgment and Acceptance

FOR THE COMPANY
Akiyam Solutions Private Limited
Name: **Hemant V Pawar**
Designation: **HR Manager**

FOR THE RECIPIENT
Name: Sunasara ImtiyajHussain
Designation: GenAI Intern_____

Signature: _____
Date: 18-03-2026_____